

BEFORE
THE PUBLIC UTILITIES COMMISSION OF OHIO



Telecommunications (Listed Infringement Notice Provisions) Declaration 2022

~~made under subsection 572E(7) of the~~

~~*Telecommunications Act 1997*~~

Compilation No. 1

Compilation date: _____ 30 July 2022

Includes amendments up to: _____ F2022L01023

~~Prepared by the Australian Communications and Media Authority, Melbourne~~

About this compilation

This compilation

This is a compilation of the *Telecommunications (Listed Infringement Notice Provisions) Declaration 2022* that shows the text of the law as amended and in force on 30 July 2022 (the **compilation date**).

The notes at the end of this compilation (the **endnotes**) include information about amending laws and the amendment history of provisions of the compiled law.

Uncommenced amendments

The effect of uncommenced amendments is not shown in the text of the compiled law. Any uncommenced amendments affecting the law are accessible on the Federal Register of Legislation (www.legislation.gov.au). The details of amendments made up to, but not commenced at, the compilation date are underlined in the endnotes. For more information on any uncommenced amendments, see the series page on the Federal Register of Legislation for the compiled law.

Application, saving and transitional provisions for provisions and amendments

If the operation of a provision or amendment of the compiled law is affected by an application, saving or transitional provision that is not included in this compilation, details are included in the endnotes.

Modifications

If the compiled law is modified by another law, the compiled law operates as modified but the modification does not amend the text of the law. Accordingly, this compilation does not show the text of the compiled law as modified. For more information on any modifications, see the series page on the Federal Register of Legislation for the compiled law.

Self-repealing provisions

If a provision of the compiled law has been repealed in accordance with a provision of the law, details are included in the endnotes.

~~Part 1 – Preliminary~~

~~1 Name~~

~~———— This is the *Telecommunications (Listed Infringement Notice Provisions) Declaration 2022*.~~

~~2 Commencement~~

~~This instrument commences at the start of the day after the day it is registered on the Federal Register of Legislation.~~

~~Note: — The Federal Register of Legislation may be accessed free of charge at www.legislation.gov.au~~

~~3 Authority~~

~~———— This instrument is made under subsection 572E(7) of the *Telecommunications Act 1997*.~~

~~4 Repeal of the *Telecommunications (Listed Infringement Notice Provisions) Declaration 2011*~~

~~———— The *Telecommunications (Listed Infringement Notice Provisions) Declaration 2011* (Registration No. F2011L02374) is repealed.~~

~~5 References to other instruments~~

~~———— In this instrument, unless the contrary intention appears:~~

- ~~(a) — a reference to any other legislative instrument is a reference to that other legislative instrument as in force from time to time; and~~
- ~~(b) — a reference to any other kind of instrument is a reference to that other instrument as in force from time to time. —~~

~~Note 1: — For references to Commonwealth Acts, see section 10 of the *Acts Interpretation Act 1901*; and see also subsection 13(1) of the *Legislation Act 2003* for the application of the *Acts Interpretation Act 1901* to legislative instruments.~~

~~Note 2: — For references to instruments that are not legislative instruments, see subsection 589(2) of the *Telecommunications Act 1997*.~~

~~Note 2: — All Commonwealth Acts and legislative instruments are registered on the Federal Register of Legislation.~~

~~Part 2 – Declarations~~

~~6 Declaration – Act provisions~~

~~———— For paragraph 572E(7)(a) of the *Telecommunications Act 1997*, each provision specified in Schedule 1 is a listed infringement notice provision.~~

~~7 Declaration – Determination provisions~~

~~———— For paragraph 572E(7)(c) of the *Telecommunications Act 1997*, each provision specified in Schedule 2 is a listed infringement notice provision.~~

Schedule 1 — Act provisions

(section 6)

- 1 — Provisions of the *Telecommunications Act 1997*:
 - (a) — subsection 69(4);
 - (b) — subsection 102(4);
 - (c) — section 308;
 - (d) — paragraph 360H(2)(d);
 - (e) — paragraph 360H(2)(e);
 - (f) — paragraph 360H(4)(d);
 - (g) — paragraph 360H(4)(e);
 - (h) — subsection 360H(8);
 - (i) — subsection 360H(9);
 - (j) — paragraph 360HA(1)(c);
 - (k) — paragraph 360HA(1)(d);
 - (l) — paragraph 360HA(3)(c);
 - (m) — paragraph 360HA(3)(d);
 - (n) — subsection 360LA(1);
 - (o) — subsection 360LA(2);
 - (p) — subsection 360P(1);
 - (q) — subsection 360P(8);
 - (r) — subsection 360P(9);
 - (s) — subsection 360P(11A);
 - (t) — paragraph 360P(12)(c);
 - (u) — paragraph 360P(12)(d);
 - (v) — subsection 360Q(1);
 - (w) — subsection 360Q(9);
 - (x) — subsection 360Q(10);
 - (y) — subsection 360R(2);
 - (z) — subsection 360R(3);
 - (za) — subsection 360W(1);
 - (zb) — subsection 360W(2);
 - (zc) — subsection 360X(1);
 - (zd) — subsection 360X(2);
 - (ze) — subsection 462(1);
 - (zf) — subsection 521(3);
 - (zg) — section 530;
 - (zh) — subclause 10(2) of Schedule 2;
 - (zi) — subclause 11(2) of Schedule 2.
- 2 — Provisions of the *Telecommunications (Consumer Protection and Service Standards) Act 1999*:
 - (a) — subsection 12EB(4);
 - (b) — subsection 12EC(9);
 - (c) — subsection 12ED(4);

- ~~(d) subsection 12EE(9);~~
- ~~(e) subsection 12EF(2);~~
- ~~(f) subsection 12EG(3);~~
- ~~(g) subsection 12EH(2);~~
- ~~(h) subsection 12EI(6);~~
- ~~(i) subsection 43(1);~~
- ~~(j) subsection 117A(1);~~
- ~~(k) subsection 117A(3);~~
- ~~(l) subsection 117A(4);~~
- ~~(m) subsection 117A(5);~~
- ~~(n) subsection 117C(2);~~
- ~~(o) subsection 117F(2);~~
- ~~(p) subsection 130(2);~~
- ~~(q) section 132.~~

~~3 Provisions of the *Telecommunications (Interception and Access) Act 1979*:~~

- ~~(a) subsection 187A(1);~~
 - ~~(b) subsection 196(1);~~
 - ~~(c) subsection 196(3);~~
 - ~~(d) subsection 197(1);~~
 - ~~(e) subsection 197(3);~~
 - ~~(f) subsection 198(4);~~
 - ~~(g) subsection 198(7);~~
 - ~~(h) section 200;~~
 - ~~(i) subsection 201(1).~~
-

Schedule 2 — Determination provisions

~~(section 7)~~

- ~~1 — Provisions of the *Telecommunications (Service Provider Identity Checks for Prepaid Mobile Carriage Services) Determination 2017*:
 - ~~(a) — subsection 2.3(1);~~
 - ~~(b) — subsection 6.1(1);~~
 - ~~(c) — subsection 6.1(2);~~
 - ~~(d) — section 6.3;~~
 - ~~(e) — subsection 6.4(1);~~
 - ~~(f) — subsection 6.4(4).~~~~
- ~~2 — Provisions of the *Telecommunications Service Provider (NBN Service Migration) Determination 2018*:
 - ~~(a) — subsection 7(2);~~
 - ~~(b) — subsection 7(3);~~
 - ~~(c) — subsection 7(4);~~
 - ~~(d) — subsection 9(1);~~
 - ~~(e) — subsection 10(1);~~
 - ~~(f) — subsection 10(2);~~
 - ~~(g) — subsection 10(3);~~
 - ~~(h) — section 11;~~
 - ~~(i) — subsection 12(1);~~
 - ~~(j) — section 13;~~
 - ~~(k) — subsection 14(2);~~
 - ~~(l) — subsection 14(3);~~
 - ~~(m) — subsection 15(1);~~
 - ~~(n) — subsection 16(2);~~
 - ~~(o) — subsection 16(4);~~
 - ~~(p) — subsection 16(5);~~
 - ~~(q) — subsection 16(6);~~
 - ~~(r) — subsection 17(2);~~
 - ~~(s) — subsection 17(3);~~
 - ~~(t) — section 18;~~
 - ~~(u) — subsection 19(2);~~
 - ~~(v) — subsection 19(3);~~
 - ~~(w) — subsection 19(4);~~
 - ~~(x) — subsection 19(5);~~
 - ~~(y) — subsection 19(6);~~
 - ~~(z) — subsection 20(1).~~~~
- ~~3 — Provisions of the *Telecommunications Service Provider (Customer Identity Authentication) Determination 2022*:
 - ~~(a) — section 8;~~
 - ~~(b) — paragraph 9(5)(a);~~
 - ~~(c) — paragraph 9(5)(b);~~~~

- ~~(d) — subsection 10(5);~~
- ~~(e) — paragraph 10(8)(a);~~
- ~~(f) — paragraph 10(8)(b);~~
- ~~(g) — subsection 11(3);~~
- ~~(h) — subsection 11(4);~~
- ~~(i) — paragraph 11(7)(a);~~
- ~~(j) — paragraph 11(7)(b);~~
- ~~(k) — subsection 12(3);~~
- ~~(l) — subsection 12(4);~~
- ~~(m) — subsection 13(1);~~
- ~~(n) — subsection 13(2);~~
- ~~(o) — section 14;~~
- ~~(p) — section 15;~~
- ~~(q) — section 16.~~

~~4 — Provisions of the *Telecommunications Service Provider (International Mobile Roaming) Determination 2019*:~~

- ~~(a) — subsection 7(1);~~
- ~~(b) — subsection 7(2);~~
- ~~(c) — subsection 7(6);~~
- ~~(d) — subsection 7(7);~~
- ~~(e) — subsection 7(8);~~
- ~~(f) — subsection 8(2);~~
- ~~(g) — subsection 8(5);~~
- ~~(h) — subsection 8(6);~~
- ~~(i) — paragraph 9(2)(a);~~
- ~~(j) — paragraph 9(2)(b);~~
- ~~(k) — paragraph 9(2)(c);~~
- ~~(l) — subsection 9(4);~~
- ~~(m) — subsection 9(5);~~
- ~~(n) — subsection 9(6);~~
- ~~(o) — subsection 10(2);~~
- ~~(p) — subsection 10(5);~~
- ~~(q) — subsection 10(6);~~
- ~~(r) — subsection 11(2);~~
- ~~(s) — subsection 11(3);~~
- ~~(t) — subsection 12(1);~~
- ~~(u) — subsection 12(2);~~
- ~~(v) — subsection 12(3);~~
- ~~(w) — subsection 12(4);~~
- ~~(x) — subsection 12(5);~~
- ~~(y) — subsection 13(2);~~
- ~~(z) — subsection 13(5);~~

(za) ~~paragraph 13(6)(a);~~
(zb) ~~paragraph 13(12)(b).~~

Endnotes

Endnote 1—About the endnotes

The endnotes provide information about this compilation and the compiled law.

The following endnotes are included in every compilation:

Endnote 1—About the endnotes

Endnote 2—Abbreviation key

Endnote 3—Legislation history

Endnote 4—Amendment history

Abbreviation key—Endnote 2

The abbreviation key sets out abbreviations that may be used in the endnotes.

Legislation history and amendment history—Endnotes 3 and 4

Amending laws are annotated in the legislation history and amendment history.

The legislation history in endnote 3 provides information about each law that has amended (or will amend) the compiled law. The information includes commencement details for amending laws and details of any application, saving or transitional provisions that are not included in this compilation.

The amendment history in endnote 4 provides information about amendments at the provision (generally section or equivalent) level. It also includes information about any provision of the compiled law that has been repealed in accordance with a provision of the law.

Misdescribed amendments

A misdescribed amendment is an amendment that does not accurately describe how an amendment is to be made. If, despite the misdescription, the amendment can be given effect as intended, then the misdescribed amendment can be incorporated through an editorial change made under section 15V of the *Legislation Act 2003*.

If a misdescribed amendment cannot be given effect as intended, the amendment is not incorporated and “(md not incorp)” is added to the amendment history.

Endnote 2—Abbreviation key

ad = added or inserted

am = amended

amdt = amendment

e = clause(s)

C[x] = Compilation No. x

Ch = Chapter(s)

def = definition(s)

Diet = Dictionary

disallowed = disallowed by Parliament

Div = Division(s)

exp = expires/expired or ceases/ceased to have effect

In the Matter of the Application of the
East Ohio Gas Company d/b/a Dominion
Energy Ohio for Approval of an
Alternative Form of Regulation to
Continue Its Pipeline Infrastructure
Replacement Program. F = Federal Register
of Legislation

gaz = gazette

LA = *Legislation Act 2003*

LIA = *Legislative Instruments Act 2003*

(md not incorp) = misdescribed amendment
cannot be given effect

mod = modified/modification

No. = Number(s)

o = order(s)

Ord = Ordinance

orig = original

par = paragraph(s)/subparagraph(s)
/sub-subparagraph(s)

pres = present

prev = previous

(prev...) = previously

Pt = Part(s)

r = regulation(s)/rule(s)

reloc = relocated

renum = renumbered

rep = repealed

rs = repealed and substituted

)

)

)

)

)

)s =

section(s)/subsection(s)

Sch = Schedule(s)

Sdiv = Subdivision(s)

SLI = Select Legislative Instrument

SR = Statutory Rules

Sub Ch = Sub Chapter(s)

SubPt = Subpart(s)

underlining = whole or part not
commenced or to be commenced

Case No. 20-1634-
GA-ALT

APPLICATION FOR REHEARING BY OFFICE OF THE OHIO CONSUMERS' COUNSEL

On May 20, 2022, OCC filed an Application for Rehearing seeking

reconsideration of the PUCO's April 20, 2022 Opinion and Order.¹ On June 15, 2022, the PUCO issued its Entry on Rehearing solely for "further consideration of the matters specified" in the Application for Rehearing filed by OCC.² The PUCO otherwise failed to address the merits of the issues raised in OCC's Application for Rehearing.

The PUCO's June 15, 2022, Entry was unreasonable and unlawful in the following respects:

Assignment of Error 1: The PUCO erred by granting rehearing to allow itself more time to issue a final appealable order. The PUCO's Entry permits it to evade a timely review and reconsideration of its order by the Ohio Supreme Court and prevents Ohio consumers from exercising their rights to appeal a PUCO order to the Ohio Supreme Court -- a right that is established under R.C. 4903.10, 4903.11 and 4903.13.

The reasons in support of this Application for Rehearing are set forth in the accompanying Memorandum in Support. Under R.C. 4903.10 and O.A.C. 4901-1-35, the PUCO should grant rehearing that addresses the merits of claims raised in OCC's May 20, 2022 Application for Rehearing, and abrogate or modify the June 15, 2022 Entry.

Respectfully submitted,

Bruce Weston (0016973)
Ohio Consumers' Counsel

/s/ Amy Botschner O'Brien
Amy Botschner O'Brien (0074423)
Counsel of Record
Ambrosia E. Wilson (0096598)
Assistant Consumers' Counsel

Office of the Ohio Consumers' Counsel
65 East State Street, Suite 700
Columbus, Ohio 43215

¹ Case No. 20-1634-GA-ALT, Application for Rehearing by Office of the Ohio Consumers' Counsel (May 20, 2022) of the PUCO's Opinion and Order (April 20, 2022).

² Case No. 20-1634-GA-ALT, Entry on Rehearing at ¶ 24 (June 15, 2022).

Telephone [Botschner O'Brien]: (614) 466-9575
Telephone [Wilson]: (614) 466-1292
amy.botschner.obrien@occ.ohio.gov
ambrosia.wilson@occ.ohio.gov
(willing to accept service by email)

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replacement (PIR) program based on an outdated and inflated 13-year-old rate of return.³

Second, on June 15, 2022, the PUCO issued its Entry on Rehearing solely for the purpose of granting itself more time for further consideration of the matters raised in OCC's Application for Rehearing.⁴

These rulings failed to protect consumers by allowing Dominion to continue charging consumers for a program embedded with excessive costs. In other words, since the PUCO's rulings, consumers have paid higher rates than they should be paying as a result of the PUCO's unjust and unreasonable Order. And the higher rates likely will not be refundable to consumers, even if the Ohio Supreme Court finds the rates unjust and unreasonable.

OCC filed an Application for Rehearing of the Opinion and Order approving Dominion's pipeline infrastructure replacement program embedded with an outdated and inflated rate of return, which was subsequently granted by the PUCO solely for the purpose of further consideration of the matters raised in the Application for Rehearing.⁵ By doing so, the PUCO failed to fulfill its duty to hear matters pending before it without unreasonable delay and with due regard to the rights and interests of Ohio consumers. This is unjust, unreasonable and will not protect consumers served by Dominion.

The PUCO should grant OCC's Application for Rehearing as further explained below to protect consumers from Dominion's excessive pipeline infrastructure replacement program charges embedded with a too-high rate of return.

³ Opinion and Order (April 20, 2022).

⁴ Entry on Rehearing at ¶ 24 (June 15, 2022).

⁵ Entry on Rehearing at ¶ 24 (June 15, 2022).

II. MATTERS FOR CONSIDERATION

A. ASSIGNMENT OF ERROR NO. 1: The PUCO erred by granting rehearing to allow itself more time to issue a final appealable order. The PUCO's Entry permits it to evade a timely review and reconsideration of its order by the Ohio Supreme Court and prevents Ohio consumers from exercising their rights to appeal a PUCO order to the Ohio Supreme Court -- a right that is established under R.C. 4903.10, 4903.11 and 4903.13.

The Ohio Supreme Court has held that “[i]t is the duty of the commission to hear matters pending before the commission without unreasonable delay and with due regard to the rights and interests of all litigants before that tribunal.”⁶ This duty is described, with defined parameters, under R.C. 4903.10.

Under R.C. 4903.10, the General Assembly established a 30-day process for the PUCO to either grant or deny rehearing. Under the statute, if the PUCO does not grant or deny the applications within 30 days, the applications are denied by operation of law. This provision is to ensure that the PUCO resolves applications in a timely manner – 30 days under the statute. The statute is designed to enforce the axiom that “justice delayed is justice denied.”⁷

The timely resolution of applications for rehearing (within 30 days) is important because an order of the PUCO cannot be appealed as a “final order” until the PUCO has substantively ruled on all rehearing applications or the rehearing has been denied by operation of law.⁸ Yet while the April 20, 2022 Opinion and Order is not a final

⁶ *State ex rel. Columbus Gas & Fuel Col. v. Pub. Util. Comm.* (1930), 122 Ohio St. 473, 475.

⁷ *See, e.g., Moeller v. Moeller* (C.A. 9th Dist.), 1993 Ohio App. LEXIS 50, *7 (finding that a similar statute, R.C. 2701.02, setting forth the time limit in which courts must render decisions on certain matters, was designed to enforce the axiom that “justice delayed is justice denied”).

⁸ *See* R.C. 4903.11.

appealable order, Dominion is permitted to continue charging consumers for excessive pipeline infrastructure costs based on an outdated and inflated rate of return.

The PUCO's June 15, 2022 Entry on Rehearing does not address the merits of this case in any manner. The Entry simply gives the PUCO additional time. Ohio consumers served by Dominion are harmed by the PUCO's decision because Dominion's recently filed tariffs reflect the inflated rate of return.⁹

The PUCO has a history of side-stepping the 30-day review by employing a process under which rehearing has been extended by months and, in some cases, even

⁹ For example, see Final Revised Tariff Pages for PIR Cost Recovery Charge, Case No. 21-1095 (June 1, 2022).

years.¹⁰ And while the Ohio Supreme Court has ruled that the PUCO may grant applications for rehearing for the limited purpose of allowing additional time to consider them,¹¹ the Court's ruling has been unreasonably applied in a manner that disrupts timely judicial review of PUCO rulings. This prejudices would-be appellants and harms consumers. The PUCO has adopted the practice of regularly granting itself more time to consider applications for rehearing and delaying a final order until months or years down the road,¹² while in the meantime consumers must suffer unjust results.¹³

¹⁰ See, e.g., *In the Matter of the Application of the East Ohio Gas Company d/b/a Dominion Energy Ohio for Approval of an Alternative Form of Regulation to Establish a Capital Expenditure Program Rider Mechanism*, Case No. 19-468-GA-ALT, First Entry on Rehearing (February 24, 2021) (granting rehearing for the purpose of allowing the PUCO more time to consider OCC's application for rehearing). The PUCO issued a substantive Entry on Rehearing one year later on February 23, 2022. *In the Matter of the Application of the Dayton Power and Light Company to Establish a Standard Service Offer in the Form of an Electric Security Plan*, Case No. 08-1094-EL-SSO, et al. Fourth Entry on Rehearing (February 14, 2020) (granting rehearing for the purpose of allowing PUCO more time to consider OCC's application for rehearing). The PUCO issued a substantive Entry on Rehearing over a year later on June 16, 2021, after OCC filed a complaint for writ of procedendo with the Supreme Court of Ohio. *In the Matter of the Application of Ohio Power Company*, Case No. 13-2385, Third Entry on Rehearing (July 27, 2015) (granting rehearing allowing PUCO more time to consider OCC's and others' applications for rehearing). A substantive entry on rehearing was finally issued on November 3, 2016, more than a year later. *In re: Duke Energy Ohio*, Case No. 14-841-EL-SSO, Entry on Rehearing (May 28, 2015) (granting rehearing allowing PUCO more time to consider OCC's and others' applications for rehearing). Substantive entry on rehearing issued almost three years later, on March 21, 2018. *In the Matter of the Application of The Dayton Power and Light Company for Authority to Issue and Sell and Amount Not to Exceed \$490 Million of First Mortgage Bonds, Debentures, Notes, or Other Evidences of Indebtedness or Unsecured Note*, Case No. 13-0893-EL-AIS, Entry on rehearing (September 4, 2013) (granting application for rehearing filed by OCC for the limited purpose of further consideration). No final entry. *In the Matter of the Application of Ohio Edison Company, The Cleveland Electric Illuminating Company, and The Toledo Edison Company for Approval of Their Energy Efficiency and Peak Demand Reduction Program Portfolio Plans for 2013-2015*, Case Nos. 12-2190-EL-POR, 12-2191-EL-POR, and 12-2192-EL-POR, Entry on rehearing (January 14, 2015) (granting the applications for rehearing by OCC, FirstEnergy, OMAEG, and Environmental Groups for the limited purpose of further consideration). Substantive entry on rehearing issued over four years later, on April 10, 2019.

¹¹ See, *State ex rel. Consumers' Counsel v. Pub. Util. Comm.*, 102 Ohio St.3d 301, 304 (2004).

¹² See *supra* note 10.

¹³ A factor that contributes to harm to customers is that the PUCO as a matter of course denies requests to stay rates or collect rates subject to refund. A ruling granting a stay of rates or collecting rates subject to refund would potentially limit the harm to customers that is occurring when the PUCO delays issuing a final order. Typically, the PUCO has not ordered such relief.

This practice defeats the intended purpose of the 30-day timeframe set forth in R.C. 4903.10 and allows the PUCO to evade timely judicial review of its decisions. Nowhere in *Consumers' Counsel* does the Court hold that R.C. 4903.10 permits the PUCO to delay final appealable decisions on rehearing for months or years on end. To do so would create an unjust and absurd result contrary to the purpose of R.C. 4903.10.¹⁴

To protect consumers, the PUCO should act to substantively address or deny issues on rehearing within the 30-day timeframe set forth in R.C. 4903.10. A final appealable order should be issued to protect consumers and allow parties to exercise their rights under R.C. 4903.11 and 4903.13 to appeal PUCO decisions to the Court. Granting more time ostensibly to consider issues raised on rehearing unreasonably delays the issuance of a final order all the while consumers are prejudiced.

III. CONCLUSION

To protect customers, the PUCO should grant rehearing to substantively address the issues raised in OCC's Application for Rehearing and abrogate or modify its June 15, 2022 Entry to address the issues raised by OCC's Application for Rehearing. Justice for consumers requires the PUCO's timely consideration of OCC's Application for Rehearing.

¹⁴ See e.g., *Mishr v. Board of Zoning Appeals of Village of Poland*, (1996) 76 Ohio St.3d 238, 240 (quoting *Slater v. Cave* (1853) 3 Ohio St. 80, 83-84 ("It is a cardinal rule of statutory construction that a statute should not be interpreted to yield an absurd result" and where literal construction of a statute leads to "great absurdity or injustice" it "may be rejected.")).

Respectfully submitted,

Bruce Weston (0016973)
Ohio Consumers' Counsel

/s/ Amy Botschner O'Brien
Amy Botschner O'Brien (0074423)
Counsel of Record
Ambrosia E. Wilson (0096598)
Assistant Consumers' Counsel

Office of the Ohio Consumers' Counsel
65 East State Street, Suite 700
Columbus, Ohio 43215
Telephone [Botschner O'Brien]: (614) 466-9575
Telephone [Wilson]: (614) 466-1292
amy.botschner.obrien@occ.ohio.gov
ambrosia.wilson@occ.ohio.gov
(willing to accept service by email)

CERTIFICATE OF SERVICE

I hereby certify that a copy of this Application for Rehearing was served on the persons stated below via electronic transmission, this 15th day of July 2022.

/s/ Amy Botschner O'Brien
Amy Botschner O'Brien
Assistant Consumers' Counsel

The PUCO's e-filing system will electronically serve notice of the filing of this document on the following parties:

SERVICE LIST

Endnote 4—Amendment history

kyle.kern@ohioAGO.gov
jodi.bair@ohioAGO.gov

Attorney Examiners:
sarah.parrot@puco.ohio.gov
jacqueline.st.john@puco.ohio.gov
Provision affected

whitt@whitt-sturtevant.com
kennedy@whitt-sturtevant.com
andrew.j.campbell@dominionenergy.com
rdove@keglerbrown.com
mpritchard@mcneeslaw.com
bmckenney@mcneeslaw.com

	How affected
<u>s.2</u>	<u>rep. LA s.48D</u>
<u>s.4</u>	<u>rep. LA s.48C</u>
<u>Schedule 2</u>	<u>am. F2022L01023</u>